

26STCV09450 26STCV09450

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No.

13 - David Navid Nabizadeh v. Mercedes-Benz USA, LLC

Defendant Mercedes-Benz USA, LLC's Demurrer
to Complaint

Defendant

Mercedes-Benz USA, LLC demurs to all causes of action alleged in the complaint
by Plaintiff David Navid Nabizadeh for breach of express warranty and breach of
implied warranty.

Breach
of Express Warranty

Plaintiff

does not allege sufficient facts for breach of express warranty. This cause of
action alleges a violation of a provision of the Song-Beverly Consumer Warranty
Act (the Act). The Act "distinguishes between new and used products and
calibrates manufacturers' and sellers' obligations accordingly." (Rodriguez
v. FCA US LLC (2024) 17 Cal.5th 189, 200.) Most provisions of the Act apply
to "consumer goods (i.e., new products)." (Ibid.) Other provisions apply
to "new motor vehicles," which the California Supreme Court held does not
include "a motor vehicle purchased with an unexpired manufacturer's new car
warranty ... unless the new car warranty
was issued with the sale." (Id. at p. 196.)

Here,

Plaintiff alleges he purchased a 2022 Mercedes-Benz EQS-Class Sedan in 2025,

thereby indicating that the car was purchased used. (See Compl., ¶ 8.) He alleges “the Subject Vehicle was purchased as a certified pre-owned (“CPO”) with an accompanying MERCEDES-BENZ USA, LLC’s new and full CPO warranty.” (Ibid.) Plaintiff does not allege that the vehicle was new or that Defendant issued a new vehicle warranty with the sale.

In opposition, Plaintiff argues that a CPO warranty is a “new vehicle warranty” as contemplated by Rodriguez because it was issued at the time of sale. The Court disagrees. This is a new warranty on a used car, not a new vehicle warranty.

The demurrer as to this cause of action is sustained without leave to amend.

Breach of Implied Warranty

Defendant argues that Plaintiff cannot state a claim for breach of implied warranty because Plaintiff’s vehicle is not a “new motor vehicle,” and Plaintiff fails to allege that Defendant acted as a seller or distributor of the vehicle.

While the Song-Beverly Act generally applies to “new” consumer goods (see Civ. Code, § 1791), it extends to used consumer goods when “the sale is accompanied by an express warranty” (see Civ. Code, § 1795.5(c)). Rodriguez elaborated on the Act’s distinctions between new and used products: “Separate from the[] provisions concerning new products, the Act includes a distinct section addressing used products.” (Rodriguez, *supra*, at p. 200.) “[T]he basic framework of the Song-Beverly Act distinguishes between new and used products and ‘provides similar remedies in the context of the sale of used goods, except that the manufacturer is generally off the hook.’ ” (Id. at p. 201 [italics added]; see also Ruiz Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 399 [“only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods”].)

While Plaintiff did not sufficiently allege that his vehicle is a “new motor

vehicle,” he does allege sufficient facts to show that the vehicle is used and was accompanied by an express warranty. Therefore, Plaintiff’s remedies are not entirely foreclosed under the Act for breach of implied warranty.

However,

Plaintiff did not sufficiently allege that Defendant acted as a seller or distributor of the vehicle. The complaint only alleges, in a conclusory manner, that “Defendant, MERCEDES-BENZ USA, LLC, is a ‘manufacturer’ and/or ‘distributor’ under the Act.” (Compl., ¶ 22.) Under *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43.Cal.App.5th 334, 340, a manufacturer was held liable under Civil Code section 1795.5 because it partnered with a dealership to sell the vehicle at issue and therefore “stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5.” “[T]he assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities.” (Ibid.) Here, Plaintiff does not allege that Defendant partnered with MB of Los Angeles, the dealership, to sell the vehicle to the public. (Ibid.) Further, the complaint does not otherwise allege that Defendant “stepped into the role of retailer” through its actions. (Ibid.)

The

demurrer as to this cause of action is sustained with leave to amend.

Disposition

Defendant Mercedes-Benz USA, LLC’s demurrer to Plaintiff David Navid Nabizadeh’s complaint is sustained without leave to amend as to the first cause of action, and sustained with 21 days’ leave to amend as to the second cause of action.